

UNITED STATES DISTRICT COURT  
EASTERN DISTRICT OF NEW YORK

JAVON NOEL,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER  
JAMES M. FARAH (Shield 17496), and POLICE  
OFFICERS AND SUPERVISORY POLICE  
OFFICERS JOHN DOES 1-5,

Defendants.

ORIGINAL  
U.S. DISTRICT COURT  
EASTERN DISTRICT OF NEW YORK

13 CV

COMPLAINT

JURY TRIAL DEMANDED

SEP 26 PM 2:26

FILED  
CLERK

CV 13 - 5361

Plaintiff JAVON NOEL, by his attorney, Joel Berger, Esq., for his complaint alleges, upon information and belief, as follows:

JOHNSON  
ORENSTEIN, M.J.

**NATURE OF THE ACTION**

1. This is an action to recover money damages arising out of the violation of plaintiff's rights under the Constitution and laws of the United States and the State of New York, including false arrest, false imprisonment, malicious prosecution, and excessive and unnecessary use of force, by employees of the New York City Police Department (NYPD),

**JURISDICTION AND VENUE**

2. This action is brought pursuant to 42 U.S.C. §§ 1983 and 1988, and the First, Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

3. The jurisdiction of this Court is predicated upon 28 U.S.C. §§ 1331 and 1343.

4. Venue is proper in this district pursuant to 28 U.S.C. § 1391 (b).

**PENDENT JURISDICTION**

5. This Court also has jurisdiction over plaintiff's state law claims, pursuant to its pendent or supplemental jurisdiction as codified in 28 U.S.C. § 1367.

6. On July 23, 2012, within ninety days after the claims alleged in this complaint arose, a verified Notice of Claim was duly served upon the Comptroller of the City of New York pursuant to General Municipal Law § 50-e.

7. At least thirty days have elapsed since the service of the Notice of Claim, and adjustment or payment of the claims has been neglected or refused by defendant City of New York.

8. This action is being commenced within one year and ninety days after the happening of the events upon which the claims are based.

### ***JURY DEMAND***

9. Plaintiff demands trial by jury in this action.

### ***PARTIES***

10. Plaintiff Javon Noel is a 29 year-old black man whose right leg has been amputated below the knee as a result of an accident. He wears a prosthesis. He has never been convicted of a crime.

11. Defendant City of New York is a municipal corporation organized under the laws of the State of New York. It operates the NYPD, a department or agency of defendant City of New York responsible for the appointment, training, supervision, promotion and discipline of police officers and supervisory police officers, including the individually named defendants herein.

12. At all times relevant herein, defendant James M. Farrah, Shield 17496, was a police officer employed by the NYPD, assigned to the 60<sup>th</sup> Precinct in Brooklyn, NY. He is currently assigned to the 61<sup>st</sup> Precinct, also in Brooklyn.

13. At all times relevant herein, defendants John Does 1-5 were police officers and supervisory police officers also employed by the NYPD. Plaintiff does not know the names or shield

numbers of John Does 1-5 at this time.

14. At all times relevant herein, defendants were acting as agents, servants and employees of defendant City of New York and the NYPD.

15. At all times relevant herein, all defendants were all acting under color of state law.

### ***FACTS***

16. On Sunday, July 1, 2012, at approximately 8:00 P.M., in the vicinity of Surf Avenue and West 35<sup>th</sup> Street in the Coney Island section of Brooklyn, New York, plaintiff **JAVON NOEL** was arrested by New York City Police Officers.

17. Plaintiff was imprisoned for approximately 16 hours in police custody, at the 60<sup>th</sup> police precinct and then at Brooklyn Central Booking.

18. At arraignment plaintiff was released from Brooklyn Central Booking on his own recognizance at approximately 4:00 P.M. on July 2, 2012.

19. Plaintiff is fighting the charges for which he was arrested and expects to be completely exonerated.

20. The incident arose as plaintiff and his wife were exiting the Coney Island beach on a hot summer evening.

21. Plaintiff and his wife observed a police officer with a man in custody.

22. The officer was being followed by a second officer who was riding a motor scooter on the sidewalk.

23. Plaintiff can ride a bicycle despite his disability, but because of his disability he feels safer riding on the sidewalk.

24. In the recent past plaintiff had received a ticket for riding his bicycle on a sidewalk.

25. Upon observing the officer riding not merely a bicycle but a motorized scooter on the sidewalk, plaintiff commented to his wife that the officer wouldn't get a ticket

26. The officer who had the man in custody told plaintiff to "shut up."

27. Plaintiff responded by stating, "with all due respect, I was not talking to you," or words to that effect.

28. The officer who ordered plaintiff to "shut up" is James M. Farah, a Caucasian officer, Shield 17496, at the time assigned to the 60<sup>th</sup> precinct.

29. Farah took umbrage at plaintiff, ordered him to turn around and handcuffed him.

30. Farah then called for a police car and ordered plaintiff to enter it.

31. Plaintiff was unable to get into the car on his own while handcuffed due to his prosthetic leg.

32. Farah and another officer manhandled plaintiff and forced him into the car, injuring him and also damaging his prothesis to the point that it had to be replaced.

33. Plaintiff was taken in handcuffs to the 60<sup>th</sup> precinct and placed in a filthy holding cell.

34. Even though plaintiff was locked in a cell, the handcuffs were not removed.

35. Plaintiff was forced to climb up a staircase at the precinct while handcuffed and maneuver back down the staircase -- an extremely difficult task for a man with a prosthetic leg -- despite the fact that there was another holding cell available that would have spared him the necessity of having to go up and down stairs.

36. Plaintiff remained at the 60<sup>th</sup> Precinct until approximately 10:30 A.M. the following day, Monday, July 2, 2012, at which time he was transported in handcuffs to Brooklyn Central Booking.

37. Plaintiff did not get to see a judge until approximately 4:00 P.M., at which time he was released on his own recognizance after approximately 16 hours in custody.

38. Solely out of spite, Farah concocted charges against plaintiff (Docket # 2012KN054490) that have no basis in fact.

39. Farah charged plaintiff with "attempted" obstructing governmental administration, when in fact plaintiff had merely made a comment to his wife.

40. Farah also charged plaintiff with two counts of disorderly conduct (making unreasonable noise and using abusive or obscene language), causing a crowd to gather and causing Farah to fear for his safety, when in fact plaintiff did nothing of the sort and merely complained after being illegally arrested. Farah even made up an abusive and obscene quote, claiming that plaintiff had said things that in fact he did not say.

41. Farah also charged plaintiff with resisting arrest by going limp upon being handcuffed, when in fact plaintiff did nothing of the sort and was simply unable to maneuver due to his disability.

42. One or more NYPD supervisors had to approve the arrest and detention of plaintiff, and the false charges against him. Defendant Farah necessarily obtained the approval(s) from his supervisor(s), including one or more of the defendants Does 1-5.

43. Farah's determination to get back at plaintiff for insufficient respect is underscored

by his (i) leaving plaintiff handcuffed in a cell, (ii) forcing plaintiff to use stairs with a prosthetic leg while handcuffed and (iii) insisting on having plaintiff taken to Central Booking even though Farah could have issued a summons at the scene or a desk appearance ticket at the precinct.

44. Plaintiff has had numerous court dates in Criminal Court on the charges.

45. On January 23, 2013, the charges were dismissed.

46. Plaintiff was told that the dismissal was unconditional, and only later learned that in fact the dismissal was an Adjournment in Contemplation of Dismissal ("ACD") (CPL § 170.55).

47. Plaintiff promptly moved to withdraw the ACD as having been accepted under false pretenses. His motion to withdraw the ACD was granted on September 5, 2013.

48. A trial date has been set for October 22, 2013.

49. This is a case of an out-of-control police officer with a short fuse who grossly abused his authority merely to "teach a lesson" to a disabled bystander whom he felt was being insufficiently respectful during the officer's tour of duty on a hot summer evening. Plaintiff expects to be totally exonerated on all charges.

#### ***FIRST CLAIM FOR RELIEF***

50. Plaintiff repeats and realleges the allegations contained in ¶¶ 1-49.

51. Defendants, by their conduct toward plaintiff alleged herein, violated plaintiff's rights guaranteed by 42 U.S.C. § 1983, the First, Fourth, Fifth, and Fourteenth Amendments to the Constitution of the United States, and Article I, §§ 1, 5, 6, 11 and 12 of the Constitution of the State of New York.

#### ***SECOND CLAIM FOR RELIEF***

52. Plaintiff repeats and realleges the allegations contained in ¶¶ 1-49 and 51.

53. The acts complained of herein are a direct and proximate result of the failure of the City of New York and the NYPD properly to select, train, supervise, promote and discipline police officers, detectives and supervisory officers.

54. The failure of the City of New York and the NYPD properly to select, train, supervise, promote and discipline police officers, detectives and supervisory officers constitutes gross and deliberate indifference to unconstitutional conduct by those officers.

55. The official policies, practices and customs of the City of New York and the NYPD, alleged in ¶¶ 1-30, 32 and 33-34 violated plaintiff's rights guaranteed by 42 U.S.C. § 1983, the First, Fourth, Fifth, and Fourteenth Amendments to the Constitution of the United States, and Article I, §§ 1, 5, 6, 11 and 12 of the Constitution of the State of New York.

### ***THIRD CLAIM FOR RELIEF***

56. Plaintiff repeats and realleges the allegations contained in ¶¶ 1-49, 51, and 53-55.

57. The conduct toward plaintiff alleged herein constituted false arrest, false imprisonment, malicious prosecution, the unnecessary and excessive use of force, and employee negligence.

58. The conduct toward plaintiff alleged herein subjected plaintiff to trauma, shock, debasement, shame, fright, fear, humiliation, embarrassment, loss of freedom, harassment, and physical, psychological and emotional injury, trauma, pain, and suffering.

### ***FOURTH CLAIM FOR RELIEF***

59. Plaintiff repeats and realleges the allegations contained in ¶¶ 1-49, 51, 53-55, and 57-

58.

60. At all times relevant herein, the individual defendants were on duty and were acting within the scope of their employment as agents, servants and employees of the City of New York, which is therefore responsible for their conduct under common law, state law and Article I, §§ 1, 5, 6, 11 and 12 of the Constitution of the State of New York.

***PRAYER FOR RELIEF***

**WHEREFORE**, Plaintiff respectfully requests judgment against defendants as follows:

- (a) Compensatory damages against all defendants, jointly and severally;
- (b) Punitive damages against all individual defendants, jointly and severally;
- (c) Reasonable attorneys' fees and costs pursuant to 42 U.S.C. § 1988; and
- (d) Such other and further relief as this Court deems just and proper.

Dated: New York, New York  
September 26, 2013

  
**JOEL BERGER**

360 Lexington Avenue, 16<sup>th</sup> Fl.  
New York, New York 10017  
(212) 687-1425

**ATTORNEY FOR PLAINTIFF**

# CV 13-5361

## CIVIL COVER SHEET

The JS 44 civil cover sheet and the information contained herein neither replace nor supplement the filing and service of pleadings or other papers as required by law, except as provided by local rules of court. This form, approved by the Judicial Conference of the United States in September 1974, is required for the use of the Clerk of Court for the purpose of initiating the civil docket sheet. (SEE INSTRUCTIONS ON NEXT PAGE OF THIS FORM.)

**I. (a) PLAINTIFFS**

JAVON NOEL

**DEFENDANTS**

THE CITY OF NEW YORK, POLICE OFFICER JAMES M. FARAH (Shield 17496) and POLICE OFFICERS and SUPERVISORY POLICE OFFICERS JOHN DOES 1-5

(b) County of Residence of First Listed Plaintiff Queens

(EXCEPT IN U.S. PLAINTIFF CASES)

County of Residence of First Listed Defendant

(IN U.S. PLAINTIFF CASES ONLY)

NOTE: IN LAND CONDEMNATION CASES, USE THE LOCATION OF THE TRACT OF LAND INVOLVED.

(c) Attorneys (Firm Name, Address, and Telephone Number)

Joel Berger, 360 Lexington Ave., 16th Fl., New York, NY 10017

Attorneys (If Known)

Michael A. Cardozo, 100 Church Street, New York, NY 10007, (212) 550-0000

**ORENSTEIN, M. J.****II. BASIS OF JURISDICTION** (Place an "X" in One Box Only)

- ☐ 1 U.S. Government Plaintiff
- ☒ 3 Federal Question (U.S. Government Not a Party)
- ☐ 2 U.S. Government Defendant
- ☐ 4 Diversity (Indicate Citizenship of Parties in Item III)

**III. CITIZENSHIP OF PRINCIPAL PARTIES** (Place an "X" in One Box for Plaintiff and One Box for Defendant)

- |                                                               | PTF                        | DEF                        |
|---------------------------------------------------------------|----------------------------|----------------------------|
| Citizen of This State                                         | <input type="checkbox"/> 1 | <input type="checkbox"/> 1 |
| Citizen of Another State                                      | <input type="checkbox"/> 2 | <input type="checkbox"/> 2 |
| Citizen or Subject of a Foreign Country                       | <input type="checkbox"/> 3 | <input type="checkbox"/> 3 |
| Incorporated or Principal Place of Business in This State     | <input type="checkbox"/> 4 | <input type="checkbox"/> 4 |
| Incorporated and Principal Place of Business in Another State | <input type="checkbox"/> 5 | <input type="checkbox"/> 5 |
| Foreign Nation                                                | <input type="checkbox"/> 6 | <input type="checkbox"/> 6 |

**IV. NATURE OF SUIT** (Place an "X" in One Box Only)

| CONTRACT                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    | TORTS                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      | FORFEITURE/PENALTY                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           | BANKRUPTCY                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       | OTHER STATUTES                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |
|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <input type="checkbox"/> 110 Insurance<br><input type="checkbox"/> 120 Marine<br><input type="checkbox"/> 130 Miller Act<br><input type="checkbox"/> 140 Negotiable Instrument<br><input type="checkbox"/> 150 Recovery of Overpayment & Enforcement of Judgment<br><input type="checkbox"/> 151 Medicare Act<br><input type="checkbox"/> 152 Recovery of Defaulted Student Loans (Excludes Veterans)<br><input type="checkbox"/> 153 Recovery of Overpayment of Veteran's Benefits<br><input type="checkbox"/> 160 Stockholders' Suits<br><input type="checkbox"/> 190 Other Contract<br><input type="checkbox"/> 195 Contract Product Liability<br><input type="checkbox"/> 196 Franchise | <b>PERSONAL INJURY</b><br><input type="checkbox"/> 310 Airplane<br><input type="checkbox"/> 315 Airplane Product Liability<br><input type="checkbox"/> 320 Assault, Libel & Slander<br><input type="checkbox"/> 330 Federal Employers' Liability<br><input type="checkbox"/> 340 Marine<br><input type="checkbox"/> 345 Marine Product Liability<br><input type="checkbox"/> 350 Motor Vehicle<br><input type="checkbox"/> 355 Motor Vehicle Product Liability<br><input type="checkbox"/> 360 Other Personal Injury<br><input type="checkbox"/> 362 Personal Injury - Medical Malpractice | <b>PERSONAL INJURY</b><br><input type="checkbox"/> 365 Personal Injury - Product Liability<br><input type="checkbox"/> 367 Health Care/Pharmaceutical Personal Injury Product Liability<br><input type="checkbox"/> 368 Asbestos Personal Injury Product Liability<br><b>PERSONAL PROPERTY</b><br><input type="checkbox"/> 370 Other Fraud<br><input type="checkbox"/> 371 Truth in Lending<br><input type="checkbox"/> 380 Other Personal Property Damage<br><input type="checkbox"/> 385 Property Damage Product Liability | <input type="checkbox"/> 625 Drug Related Seizure of Property 21 USC 881<br><input type="checkbox"/> 690 Other<br><b>LABOR</b><br><input type="checkbox"/> 710 Fair Labor Standards Act<br><input type="checkbox"/> 720 Labor/Management Relations<br><input type="checkbox"/> 740 Railway Labor Act<br><input type="checkbox"/> 751 Family and Medical Leave Act<br><input type="checkbox"/> 790 Other Labor Litigation<br><input type="checkbox"/> 791 Employee Retirement Income Security Act | <input type="checkbox"/> 422 Appeal 28 USC 158<br><input type="checkbox"/> 423 Withdrawal 28 USC 157<br><b>PROPERTY RIGHTS</b><br><input type="checkbox"/> 820 Copyrights<br><input type="checkbox"/> 830 Patent<br><input type="checkbox"/> 840 Trademark<br><b>SOCIAL SECURITY</b><br><input type="checkbox"/> 861 HIA (1395ff)<br><input type="checkbox"/> 862 Black Lung (923)<br><input type="checkbox"/> 863 DIWC/DIWW (405(g))<br><input type="checkbox"/> 864 SSID Title XVI<br><input type="checkbox"/> 865 RSI (405(g)) | <input type="checkbox"/> 375 False Claims Act<br><input type="checkbox"/> 400 State Reapportionment<br><input type="checkbox"/> 410 Antitrust<br><input type="checkbox"/> 430 Banks and Banking<br><input type="checkbox"/> 450 Commerce<br><input type="checkbox"/> 460 Deportation<br><input type="checkbox"/> 470 Racketeer Influenced and Corrupt Organizations<br><input type="checkbox"/> 480 Consumer Credit<br><input type="checkbox"/> 490 Cable/Sat TV<br><input type="checkbox"/> 850 Securities/Commodities/Exchange<br><input type="checkbox"/> 890 Other Statutory Actions<br><input type="checkbox"/> 891 Agricultural Acts<br><input type="checkbox"/> 893 Environmental Matters<br><input type="checkbox"/> 895 Freedom of Information Act<br><input type="checkbox"/> 896 Arbitration<br><input type="checkbox"/> 899 Administrative Procedure Act/Review or Appeal of Agency Decision<br><input type="checkbox"/> 950 Constitutionality of State Statutes |
| <b>REAL PROPERTY</b><br><input type="checkbox"/> 210 Land Condemnation<br><input type="checkbox"/> 220 Foreclosure<br><input type="checkbox"/> 230 Rent Lease & Ejectment<br><input type="checkbox"/> 240 Torts to Land<br><input type="checkbox"/> 245 Tort Product Liability<br><input type="checkbox"/> 290 All Other Real Property                                                                                                                                                                                                                                                                                                                                                      | <b>CIVIL RIGHTS</b><br><input checked="" type="checkbox"/> 440 Other Civil Rights<br><input type="checkbox"/> 441 Voting<br><input type="checkbox"/> 442 Employment<br><input type="checkbox"/> 443 Housing/Accommodations<br><input type="checkbox"/> 445 Amer. w/Disabilities - Employment<br><input type="checkbox"/> 446 Amer. w/Disabilities - Other<br><input type="checkbox"/> 448 Education                                                                                                                                                                                        | <b>PRISONER PETITIONS</b><br><b>Habeas Corpus:</b><br><input type="checkbox"/> 463 Alien Detainee<br><input type="checkbox"/> 510 Motions to Vacate Sentence<br><input type="checkbox"/> 530 General<br><input type="checkbox"/> 535 Death Penalty<br><b>Other:</b><br><input type="checkbox"/> 540 Mandamus & Other<br><input type="checkbox"/> 550 Civil Rights<br><input type="checkbox"/> 555 Prison Condition<br><input type="checkbox"/> 560 Civil Detainee - Conditions of Confinement                                | <b>FEDERAL TAX SUITS</b><br><input type="checkbox"/> 870 Taxes (U.S. Plaintiff or Defendant)<br><input type="checkbox"/> 871 IRS—Third Party 26 USC 7609                                                                                                                                                                                                                                                                                                                                         |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |

**V. ORIGIN** (Place an "X" in One Box Only)

- ☒ 1 Original Proceeding
- ☐ 2 Removed from State Court
- ☐ 3 Remanded from Appellate Court
- ☐ 4 Reinstated or Reopened
- ☐ 5 Transferred from Another District (specify)
- ☐ 6 Multidistrict Litigation

**VI. CAUSE OF ACTION**

Cite the U.S. Civil Statute under which you are filing (Do not cite jurisdictional statutes unless diversity):  
 42 USC Secs. 1983 and 1988

Brief description of cause:

False arrest, false imprisonment, malicious prosecution, and excessive and unnecessary force by NYC police

**VII. REQUESTED IN COMPLAINT:**

☐ CHECK IF THIS IS A CLASS ACTION UNDER RULE 23, F.R.Cv.P.

**DEMAND \$**

CHECK YES only if demanded in complaint:

**JURY DEMAND:** ☒ Yes ☐ No**VIII. RELATED CASE(S) IF ANY**

(See instructions):

JUDGE

DOCKET NUMBER

DATE 9/26/13 SIGNATURE OF ATTORNEY OF RECORD

FOR OFFICE USE ONLY

RECEIPT #

AMOUNT

APPLYING IFP

JUDGE SJMAG. JUDGE 5046530645365361

**CERTIFICATION OF ARBITRATION ELIGIBILITY**

Local Arbitration Rule 83.10 provides that with certain exceptions, actions seeking money damages only in an amount not in excess of \$150,000, exclusive of interest and costs, are eligible for compulsory arbitration. The amount of damages is presumed to be below the threshold amount unless a certification to the contrary is filed.

I, Joel Berger, counsel for plaintiffs, do hereby certify that the above captioned civil action is ineligible for compulsory arbitration for the following reason(s):

- ☒ monetary damages sought are in excess of \$150,000, exclusive of interest and costs,
- ☐ the complaint seeks injunctive relief,
- ☒ the matter is otherwise ineligible for the following reason **Local Civil Rule 83.7 (d) (1): alleged violation of rights secured by the U.S. Constitution; 28 USC Sec. 1343 jurisdiction.**

**DISCLOSURE STATEMENT - FEDERAL RULES CIVIL PROCEDURE 7.1**

Identify any parent corporation and any publicly held corporation that owns 10% or more of its stocks:

**RELATED CASE STATEMENT (Section VIII on the Front of this Form)**

Please list all cases that are arguably related pursuant to Division of Business Rule 50.3.1 in Section VIII on the front of this form. Rule 50.3.1 (a) provides that "A civil case is "related" to another civil case for purposes of this guideline when, because of the similarity of facts and legal issues or because the cases arise from the same transactions or events, a substantial saving of judicial resources is likely to result from assigning both cases to the same judge and magistrate judge." Rule 50.3.1 (b) provides that "A civil case shall not be deemed "related" to another civil case merely because the civil case: (A) involves identical legal issues, or (B) involves the same parties." Rule 50.3.1 (c) further provides that "Presumptively, and subject to the power of a judge to determine otherwise pursuant to paragraph (d), civil cases shall not be deemed to be "related" unless both cases are still pending before the court."

**NY-E DIVISION OF BUSINESS RULE 50.1(d)(2)**

- 1.) Is the civil action being filed in the Eastern District removed from a New York State Court located in Nassau or Suffolk County? No
- 2.) If you answered "no" above:
- a) Did the events or omissions giving rise to the claim or claims, or a substantial part thereof, occur in Nassau or Suffolk County? No
- b) Did the events of omissions giving rise to the claim or claims, or a substantial part thereof, occur in the Eastern District? Yes

If your answer to question 2 (b) is "No," does the defendant (or a majority of the defendants, if there is more than one) reside in Nassau or Suffolk County, or, in an interpleader action, does the claimant (or a majority of the claimants, if there is more than one) reside in Nassau or Suffolk County? N/A

(Note: A corporation shall be considered a resident of the County in which it has the most significant contacts).

**BAR ADMISSION**

I am currently admitted in the Eastern District of New York and currently a member in good standing of the bar of this court.



Yes



No

Are you currently the subject of any disciplinary action (s) in this or any other state or federal court?



Yes

(If yes, please explain)



No

I certify the accuracy of all information provided above.

Signature: 